

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased: 3/23/18

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CMEL, an infant over the age of 14 years by his mother
and Natural Guardian, MARIA LOZANO, and MARIA
LOZANO, Individually

SUMMONS

Plaintiffs,

-against-

Plaintiffs designate
BRONX County as the
place of trial CPLR 504 (3)

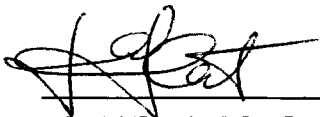
CITY OF NEW YORK, P.O. JOSE TEJADA and OFFICER[S]
JOHN AND JAMES DOE, names presently unknowable by
Plaintiff and meant to designate additional offending
officers,

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
March 23, 2018


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiffs

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Jose Tejada, Shield 06150, PSA 7
737 Melrose Ave., Bronx NY 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CMEL, an infant over the age of 14 years by his mother
and Natural Guardian, MARIA LOZANO, and MARIA
LOZANO, Individually

Index No.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. JOSE TEJADA and OFFICER[S]
JOHN AND JAMES DOE, names presently unknowable by
Plaintiff and meant to designate additional offending
officers

Defendants.
-----X

Plaintiffs, by their attorney, Jonathan L. Gleit, Esq., complaining of the

Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
INFANT PLAINTIFF CMEL

1. At the time of the commencement of this action, plaintiff MARIA LOZANO was the mother and natural guardian of CMEL, an infant over the age of 14 years.
2. At the time of the commencement of this action, plaintiffs MARIA LOZANO and CMEL were and still are residents of the County of Bronx, City and State of New York.

3. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

4. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

5. That the CITY OF NEW YORK maintains a Police Department.

6. That on and about September 5, 2017, P.O. JOSE TEJADA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

7. That on and about September 5, 2017, at approximately 11:50 P.M. P.O. JOSE TEJADA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

8. That on and about September 5, 2017, OFFICER[S] JOHN AND/OR JAMES DOE, whose names are presently unknowable by Plaintiffs but necessarily known by Defendants by virtue of their involvement with the assault, detention and arrest of Plaintiff CMEL were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

9. That on and about September 5, 2017, at approximately 11:50 P.M. OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.
10. That on or about September 5, 2017 at approximately approximately 11:50 P.M., at or near the front of 750 East 149th Street, Bronx, New York, the plaintiff CMEL was assaulted, improperly arrested and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest, assault or confine CMEL
11. That at the above time and place the defendants, their agents, servants and/or employees arrested the plaintiff CMEL without any basis in law or fact and without reasonable, probable or just cause or justification.
12. That at the above time and place the defendants, their agents, servants and/or employees arrested the plaintiff CMEL without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
13. That at the above time and place the defendants P.O. JOSE TEJADA and/or OFFICER[S] JOHN AND JAMES DOE, did, assault and batter the infant Plaintiff CMEL.

14. That the defendants P.O. JOSE TEJADA and/or OFFICER[S] JOHN AND JAMES DOE, did, during the aforesaid detention and arrest of plaintiff, utilized unjustified, unnecessary excessive force.

15. That the defendants, their agents, servants and/or employees unlawfully arrested, assaulted, detained, imprisoned and searched the plaintiff CMEL, who was aware of his unlawful detention and confinement and took his property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

16. That at the time and place aforesaid, the defendants P.O. JOSE TEJADA did approach and then assault the infant plaintiff CMEL and then detain him without any reasonable basis or suspicion that he had or was about to engage in criminal activity.

17. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, and engaging in a policy and procedure of arresting persons without individualized reasonable or probable cause for nefarious, unlawful reasons, including to satisfy arrest quotas, and/or to attempt to justify their own wrongful conduct, and without probable or reasonable cause, and repeatedly providing false information and testimony without reprimand to the offending officers.

18. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants and their supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

19. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

20. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhil Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a

practice and procedure of, for instance, arresting all persons for conduct that is not criminal.

21. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department..

22. Furthermore the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent persons for such charges as disorderly conduct in ill-fated attempts at justifying their own misconduct, or in retaliation for legal behaviors perceived as disrespectful, and in an effort to subjugate certain minority male populations as an excuse for selectively enforcing supposed 'quality of life' violations.

23. Said practice and procedure of falsely arresting innocent persons on such charges as disorderly conduct is well evidence by defendants' own compstat and other statistical tabulations, as well as those of the district attorney, the civilian complaint review board and the bureau of internal affairs.

24. For instance, statistical analysis of the 51,503 criminal cases in New York City from 2009 through 2014 charging resisting arrest show that 5% of officers account for

40% of resisting arrest charges and 15% of officers account for nearly 75% of such cases and 60% of officers made arrests while never charging resisting arrest, evincing, among other things, the violent nature of only certain officers, including the named offers herein and their predisposition to assert similar charges such as disorderly conduct.

25. Moreover, patterns of such the aforesaid conduct of arresting persons for such charges as disorderly conduct in ill fated attempts at justifying defendants' unnecessary unjustified excessive force and without individualized reasonable or probable cause of such charges is demonstrated because multiple individuals have been subject to the same unjustified and fabricated charges, to wit, as a sample and small example:

ANTHONY COOPER was wrongfully subject to similar charges after being assaulted by arresting officer on June 7, 2009 in front of 841 East 227th Street, Bronx, New York;

ESHAWN SUTTON was wrongfully subject to similar charges after being assaulted by

P.O. JOEY RODRIGUEZ on or about August 17, 2010 at approximately 1:55 P.M., in

front of 500 East 165th Street, Bronx, New York ; ARAMIS RODRIGUEZ was

wrongfully subject to similar charges after being assaulted by Det. LISANDRO RIVERA

on or about April 10, 2009 at approximately 2:30 P.M., at the southeast corner of Faile

Street and Westchester Ave. , Bronx, New York; JUAN VALDIVIA was wrongfully

subject to similar charges after being assaulted by P.O. JAIRO GONZALEZARANGO

and P.O. ROBERT, GAZSY on or about January 16, 2010 at approximately 7:15 P.M., in front of 106 West 143rd Street, New York, New York; BENETIO MYTON was wrongfully subject to similar charges after being assaulted by P.O. ELEANOR WALSH and P.O. BRANDON RAVELO on or about March 30, 2010 at approximately 8:45 P.M., at or near the intersection of East 220th Street and White Plains Road, Bronx, New York, ANTOINE LEARY was wrongfully subject to similar charges after being assaulted by Det. DANIXON CABRERA inside 916 Stebbins Avenue, Bronx, New York; CHRISTINA ROSAS, JORGE ROSAS BETSY CAMILLO wrongfully subject to similar charges after being assaulted by officers of the NYPD on June 6, 2011, as was URIAH BROWN on July 9, 2012 and LUIS JOSE BATISTA, MAYELIN RIVAS BERRAS, YOKAILA JIMENEZ, GABRIEL MARTINEZ, FRENNY PEGUERO, DIOGENES PENA-BRITO, JONATHAN FERNANDEZ and VICTOR DEJESUS on June 2, 2013, as was JONATHAN HARRS on April 19, 2013, as was RONEL MANZUETA on June 9, 2013, as was CARLOS ACOSTA on November 11, 2013 as was EMILY MEDINA on August 21, 2014 who were all subject to wrongful disorderly conduct or similar charges as a result of legal behaviors perceived as disrespectful by the arresting officers, and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of

the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

26. That no negligence or actions on the part of the plaintiff CMEL contributed to the occurrences alleged herein in any manner whatsoever.

27. The herein above described actions and omissions, engaged in under the color of law by the defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., and the named defendants' supervisors, including policy makers, by policy, institutionalized procedure and act, deprived the plaintiff CMEL of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of his person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

28. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

29. That as a result of the foregoing, the plaintiff CMEL was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

INFANT PLAINTIFF CMEL

30. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 30 as though more fully set forth herein.

31. That on November 21, 2017 plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimants, to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

32. That on January 25, 2018 Plaintiffs did attend and give testimony at a General Municipal Law §50h hearing scheduled and held by the CITY OF NEW YORK.

33. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

34. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

35. That on or about September 5, 2017 at approximately 11:50 P.M., at or near the front of 750 East 149th Street, Bronx, New York, the plaintiff CMEL was improperly arrested and confined without knowledge of warrant, privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to arrest CMEL.

36. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff CMEL of Due Process under Law.

37. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, NEW YORK CITY POLICE DEPARTMENT, P.O. JOSE TEJADA, and OFFICER[S] JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to False Arrest, and the defendants were otherwise careless, reckless and negligent.

38. That the plaintiff CMEL, being aware of his unjust confinement, suffered severe and serious physical, emotional trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, P.O. JOSE TEJADA and OFFICER[S] JOHN AND/OR JAMES DOE.

39. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

40. That as a result of the foregoing, the plaintiff CMEL was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

INFANT PLAINTIFF CMEL

41. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 40 as though more fully set forth herein.

42. That during his aforesaid detention and arrest, the defendants, their agents, servants and /or employees utilized unnecessary, excessive and unjustified force against the plaintiff.

43. As a result of the aforesaid assault, plaintiff CMEL received injuries with accompanying physical and emotional pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be

prevented from attending to plaintiff's usual vocation and avocations and was otherwise damaged and injured.

44. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

45. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

46. That as a result of the foregoing, the plaintiff CMEL was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

INFANT LAINTIFF CMEL

47. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 46 as though more fully set forth herein.

48. That defendants P.O. JOSE TEJADA and OFFICER[S] JOHN AND/OR JAMES DOE did assault and batter the infant Plaintiff CMEL .

49. As a result of the aforesaid assault and battery, plaintiff CMEL received injuries with accompanying physical and emotional pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to

incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations and was otherwise damaged and injured.

50. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

51. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

52. That as a result of the foregoing, the plaintiff CMEL was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF MARIA LOZANO

53. Plaintiff MARIA LOZANO repeats, realleges and reiterates each and every allegation set forth in the paragraphs numbered 1 through 52 contained herein, as though the same were more fully set forth at length herein.

54. That at all times hereinafter mentioned the plaintiff MARIA LOZANO was and is the mother and natural guardian of the infant plaintiff CMEL and as such was entitled to the services, society and companionship of the infant plaintiff.

55. That in consequence of the defendants' negligence, plaintiff's child was severely injured and was treated at and by various medical personnel, and that said plaintiff was obligated to, and did, employ various medical aid and attendance for the child and did necessarily pay and become liable therefore, and will be obliged to expend further monies for said purposes in the future; that said plaintiff did render services in caring for the child; and that said parent was deprived the services of the child during the incapacitation and that the child will be less able to render services to said plaintiff by reason of the lasting effects of the injuries.

56. That said plaintiff was and will be forced to observe the suffering of her child and will be emotionally disturbed by the same.

57. That as a result of the aforementioned occurrence said plaintiff sustained damage in a sum that exceeds the jurisdictional limits of all lower Courts.

58. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF THE

INFANT PLAINTIFF CMEL

59. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 58 as though more fully set forth herein.

60. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

61. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest and detention of individuals and in the proper use of force.

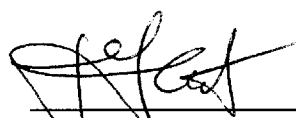
62. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiff CMEL was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to

plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

63. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, PlaintiffS demands judgment against the Defendants on the First Second, Third, Fourth, Fifth and Sixth Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
March 23, 2018


By: JONATHAN L. GLEIT, ESQ.
Attorney for PlaintiffS

CMEL and MARIA LOZANO

888 Grand Concourse
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To:

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ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiffs,

CMEL and MARIA LOZANO

I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is not presently in the county wherein the attorney for the plaintiff created this document.

DATED: Bronx, N.Y.

March 23, 2018



JONATHAN L. GLEIT, ESQ.